IMPARTIAL ANALYSIS OF MEASURE [TBD]

Article XI, Section 3 of the California Constitution, Government Code Sections 23720 and 23722, and Article I, Section 102, of the San Mateo County Charter ("Charter") authorize the Board of Supervisors ("Board") to propose amendments to the Charter for approval by the County's voters at a special election. [41]

Article XI, Section 4 of the California Constitution and Elections Code Section 23001 authorize a county to establish, by resolution, ordinance, or charter amendment, an independent redistricting commission to adopt the district boundaries of its board of supervisors. Elections Code Section 23000 defines an "independent redistricting commission" as a body, other than the legislative body itself, that is empowered to adopt those district boundaries, and state law separately imposes requirements intended to ensure the commission's independence, including restrictions on which individuals may serve as members. [82]

Article II, Section 202, of the Charter currently provides that the five supervisorial districts shall be apportioned by ordinance pursuant to general law. Under current law, the Board itself adopts the ordinance that sets district boundaries. [35]

Approval of Measure [TBD] ("Measure") would amend Section 202 of the Charter and add a new Section 202.1 to require that the County's five supervisorial districts be reapportioned after each federal decennial census by an independent redistricting commission, rather than by the Board by ordinance. This Measure was placed on the ballot by ordinance and resolution passed by a majority vote of the Board. [63]

This Measure would remove that language from Section 202 providing that the Board itself adopts the ordinance setting district boundaries and add a new Section 202.1 requiring that the five supervisorial districts instead be reapportioned, in the manner specified by general law, by an independent redistricting commission, as defined in and governed by applicable provisions of the California Elections Code. [58]

The Measure would not change or otherwise affect the remaining provisions of Section 202, including the requirement that Supervisors be elected by district, that a Supervisor reside in the district represented, and that Supervisors serve four-year terms with a limit of three consecutive terms. [44]

Voters may call the County's Registration and Elections Division at (650) 312-5222 to request that a copy of the proposed Charter amendment be mailed to them at no cost. [25]

This Measure requires approval by a majority of the qualified voters voting in the election. [15]

---------- End of Analysis ----------

(500 word limit. 363 words)